

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Diana Arreaga	Team: Squad #06	CCRB Case #: 201610030	☒ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Monday, 12/05/2016 3:20 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 6/5/2018	Precinct: 48		
Date/Time CV Reported Tue, 12/06/2016 1:16 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 12/06/2016 1:16 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Franklin Bonilla	3444	943010	048 PCT
2. Officers			048 PCT
3. An officer			048 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Andy Rollins	10169	944948	048 PCT
2. POF Kristen Lobianco	21388	959764	048 PCT
3. POF Priscilla Goris	16108	960610	048 PCT
4. POM Ken Leonlinzan	01839	960795	048 PCT

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Force: At § 87(2)(b) in the Bronx, officers used physical force against § 87(2)(b)	A . Officer(s) Unidentified
B . Officers	Force: At § 87(2)(b) in the Bronx, officers used physical force against § 87(2)(b)	B . Exonerated
C . An officer	Force: At § 87(2)(b) in the Bronx, an officer used physical force against § 87(2)(b)	C . Officer(s) Unidentified
D . Officers	Force: At § 87(2)(b) in the Bronx, officers used physical force against § 87(2)(b)	D . Exonerated
E . An officer	Discourtesy: At § 87(2)(b) in the Bronx, an officer spoke discourteously to § 87(2)(b)	E . Officer(s) Unidentified
F . SGT Franklin Bonilla	Force: At § 87(2)(b) in the Bronx, Sergeant Franklin Bonilla used a Taser against § 87(2)(b)	F . Exonerated
G . SGT Franklin Bonilla	Discourtesy: En route to the 48th Precinct stationhouse, Sergeant Franklin Bonilla spoke discourteously to § 87(2)(b)	G . Unsubstantiated

§ 87(2)(g)

Case Summary

On December 6, 2016, § 87(2)(b) filed this complaint with the Civilian Complaint Review Board (CCRB) via telephone on behalf of § 87(2)(b) and § 87(2)(b)

On December 5, 2016, at approximately 3:20 p.m., at § 87(2)(b), in the Bronx, a fight broke out between several students, including § 87(2)(b) § 87(2)(b) and § 87(2)(b) various school safety agents, and members of the school staff. Officers of the 48th Precinct were called to the scene, including Sergeant Franklin Bonilla and Police Officers Kristen LoBianco and Priscilla Goris of the 48th Precinct.

§ 87(2)(b) was brought into the ‘Green Room,’ where unidentified officers handcuffed him. The officers then allegedly slammed § 87(2)(b) onto the ground, picked him up, and slammed him onto the wall (**Allegation A**). § 87(2)(b) was brought into the ‘green room,’ and upon seeing § 87(2)(b) sitting on the ground, she attempted to run towards him. Unidentified officers grabbed § 87(2)(b) by her arms and feet and pushed her onto the ground by her back causing her to land on her stomach and chest (**Allegation B**). An unidentified female officer allegedly kicked § 87(2)(b) on her left shoulder (**Allegation C**). Officers placed § 87(2)(b) in handcuffs, then grabbed her by her arms and back and dragged her across the room towards a metal-wired gate (**within Allegation B**).

At some point, § 87(2)(b) s sister § 87(2)(b) and mother § 87(2)(b) arrived to the location. § 87(2)(b) complained that the handcuffs were placed tightly on her wrists. An officer walked over to § 87(2)(b) and took off the handcuffs. A few minutes later, Sergeant Bonilla approached § 87(2)(b) and attempted to handcuff her. § 87(2)(b) grabbed onto the gate with her free hand. As § 87(2)(b) attempted to speak to § 87(2)(b) officers allegedly pushed § 87(2)(b) causing her to stumble backwards (**Allegation D**). When § 87(2)(b) saw this, she attempted to push past Sergeant Bonilla and the officers to get to her mother. Officers grabbed § 87(2)(b) dragged her, and pushed her onto the ground causing her to land face down onto the ground (**within Allegation B**). As several officers were placing § 87(2)(b) in handcuffs she told them that they were going to break her arm. An unidentified officer allegedly responded that he “did not give a fuck” (**Allegation E**).

As § 87(2)(b) lay on the ground, she resisted the officers who attempted to place her free hand in handcuffs. After a 30 second struggle, officers were able to place the second handcuff on § 87(2)(b) s hand. Sergeant Bonilla then tasered § 87(2)(b) on her right forearm in stun gun mode (**Allegation F**). § 87(2)(b) and § 87(2)(b) were all arrested and transported to the 48th Precinct stationhouse.

En route to the 48th Precinct stationhouse, Sergeant Bonilla allegedly called § 87(2)(b) a “stupid bitch” (**Allegation G**). At the 48th Precinct stationhouse, § 87(2)(b) was released to her mother. § 87(2)(b) and § 87(2)(b) were charged with § 87(2)(b)

§ 87(2)(g)

Video Footage

Video footage for this incident was obtained and provided to the CCRB by Councilmember Ritchie Torres' office. The original video can be viewed in IA #86 (Board Review 01) and a zoomed-in version of the video can be viewed in IA#88 (Board Review 02).

§ 87(2)(g)



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Mediation, Civil and Criminal Histories

- This case was unsuitable for mediation as § 87(2)(b) and § 87(2)(b) were arrested with no Desk Appearance Tickets issued.
- According to the NYC Comptroller's Office, as of April 26, 2017, § 87(2)(b) and § 87(2)(b) have not filed a Notice of Claim regarding this incident (Board Review 03).

• [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- § 87(2)(b) and § 87(2)(b) have no prior CCRB complaints (Board Reviews 08 - 12).
- Sergeant Bonilla has been a member of the NYPD for ten years and has nine allegations in three cases with no substantiated allegations (see officer history).

Potential Issues

- Video footage for this incident shows that there were at least 20 police officers and several school safety agents, school staffers, and civilians involved in this incident.

§ 87(2)(g)

Findings and Recommendations

Explanation of Subject Officer Identification

On January 19, 2017, § 87(2)(b) was interviewed at the CCRB (Board Review 13). He was unable to provide a physical description for the officers who grabbed him from behind as he believed there were 10 officers involved, including one by the name of "Drugner." A CTS search for a male officer with the last name "Drugner" returned back negative results. Roll call from the 48th Precinct for Tours 2 and 3 indicated that Police Officer Michael Duggan was the only officer with a last name similar to the name provided by § 87(2)(b) who was working on the incident date. On March 15, 2017, Police Officer Duggan was interviewed at the CCRB (Board Review 14). He denied being involved in this incident since he was at an arrest located at § 87(2)(b) in the Bronx, which was approximately 20 blocks from § 87(2)(b), during the time this incident took place. Given the amount of officers on scene, the

investigation exhausted attempts to identify the officers who were involved in grabbing and slamming § 87(2)(b) onto the ground and against a wall. § 87(2)(g)

On December 13, 2016, § 87(2)(b) was interviewed at the CCRB (Board Review 15). § 87(2)(b) described the subject officer who kicked her as a Hispanic female, approximately 5'5" tall, in her mid-30s, heavy build, with bronze hair, and in uniform. Events #§ 87(2)(b) indicated that the following sectors responded to this incident: 48RES1-2, 48RES2-2, 48RES4-2, 48RES5-2, 48ST3-1, and 48LT1. Roll Call from the 48th Precinct for Tours 2 and 3 indicated that Police Officers Goris and Erika Gil were the only Hispanic female officers assigned to one of these sectors. On April 27, 2017, Police Officer Goris, a Hispanic female, 5'1" tall, 150 pounds, and with brown hair, was interviewed at the CCRB (Board Review 16). She denied being involved in placing § 87(2)(b) in handcuffs and denied kicking her. On April 21, 2017, Police Officer Gil, a Hispanic female 5'6" tall, 165 pounds, and with black hair, was interviewed at the CCRB (Board Review 17). She denied being involved in this incident since she was at the 48th Precinct stationhouse at the time the incident occurred. On March 21, 2017, Police Officer LoBianco, a white female, 5'5" tall, 150 pounds, and with brown, was interviewed at the CCRB (Board Review 18). She confirmed responding to the location but denied being involved in placing § 87(2)(b) in handcuffs denied kicking her. § 87(2)(g)

All civilians, witnesses, and police officers interviewed, who were involved in this incident, corroborated that there were multiple officers on scene, including school safety task force officers and school safety agents (Board Reviews 13, 15, 16, 18 – 24). Police Officer Goris explained that School Safety Task Force officers wear a uniform similar to the NYPD uniform but are civilian officers and not police officers. Events #§ 87(2)(b) notes several sectors responding to the location. This is corroborated by video footage obtained for this incident which shows at least 20 police officers and several school agents, school staffers, and civilians on scene (Board Reviews 01 and 02). The investigation exhausted attempts to identify the officers who were involved in grabbing § 87(2)(b) pushing her onto the ground face down, then picking her up and dragging her across the room. § 87(2)(g)

§ 87(2)(g)

On January 23, 2017, § 87(2)(b) was interviewed at the CCRB (Board Review 19). She was unable to provide a description for the officer who spoke discourteously towards her aside from being a male. § 87(2)(g)

Allegations not pleaded

- **Threat of Force:** § 87(2)(b) alleged that an officer swung at § 87(2)(b). No other witness present made this allegation on behalf of § 87(2)(b). Furthermore, § 87(2)(b) did not make this allegation during her verified CCRB statement. § 87(2)(g)

§ 87(2)(b) continued to resist the officers by not allowing them to grab her free hand by placing it underneath her stomach. Sergeant Bonilla tasered § 87(2)(b) in stun gun mode on her arm, who then provided her free hand to the officers and allowed them to fully place her in handcuffs.

§ 87(2)(g)

§ 87(2)(b) and § 87(2)(b) stated that the officers dragged § 87(2)(b) across the room (Board Reviews 13 and 19). § 87(2)(b) and § 87(2)(b) all corroborated that officers pushed § 87(2)(b) causing her to stumble back (Board Reviews 13, 15, 19, 21, and 22). § 87(2)(b) stated that officers grabbed her and slammed her face down onto the ground and that she did not resist Sergeant Bonilla aside from grabbing onto a gate with her free hand (Board Review 15).

Sergeant Bonilla stated that he had instructed § 87(2)(b) several times to step back as he attempted to place § 87(2)(b) in handcuffs and she challenged all of his orders (Board Review 20). He did not recall if she had complied and denied seeing any officer push § 87(2)(b). After he placed one handcuff on § 87(2)(b) she began to flail her arms causing the loose handcuff to strike him on the head. Officers grabbed § 87(2)(b) and pulled her down to the ground. Every time Sergeant Bonilla would grab a hold of § 87(2)(b)'s free hand, she would move around causing him to release his grip of her hand. After a 20-30 second struggle, Sergeant Bonilla utilized a taser in stun gun mode to subdue § 87(2)(b).

Video footage obtained from the incident location shows § 87(2)(b) running in the direction of § 87(2)(b). Officers grab § 87(2)(b) and bring her down to the ground while struggling to place her in handcuffs. Officers pick § 87(2)(b) up by the arms and walk her across the room.



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Furthermore, as the incident progresses, Sergeant Bonilla is seen attempting to re-handcuff § 87(2)(b). After a struggle and resistance by § 87(2)(b), Sergeant Bonilla, alongside several officers, grab § 87(2)(b) and take her down to the ground. § 87(2)(b) is seen resisting the officers by moving around as they are holding onto her. Sergeant Bonilla takes out a taser dry stuns her. § 87(2)(b) is then placed in handcuffs and removed from the room.



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Officers may use reasonable force under the circumstances to gain control of a person who is resisting. Patrol Guide Procedure 221-02 (Board Review 25). Force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In determining if the force is reasonable, members of the service should consider the nature and severity of the crime/ circumstances, actions taken by the subject, duration of the

action, immediacy of the perceived threat or harm to the subject, members of the service, and/ or bystanders, whether the subject is actively resisting custody, whether the subject is attempting to evade arrest by flight, size, age, and condition of the subject in comparison to the MOS, and/ or presence of hostile crowd or agitators. Patrol Guide Procedure 221-01 (Board Review 26).

Actively resisting includes physically evasive movements to defeat a member of the service's attempt at control, including bracing, tensing, pushing, or verbally signaling an intention to avoid or prevent being taken into or retained in custody. A conducted electrical weapon should only be used against persons who are actively resisting, exhibiting active aggression, or to prevent individuals from physically injuring themselves or other persons present. Patrol Guide Procedure 221-08 (Board Review 27).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegations B and F** be closed be as **exonerated**.

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation D** be closed be as **exonerated**.

Allegation G – Discourtesy: En route to the 48th Precinct stationhouse, Sergeant Franklin Bonilla spoke discourteously to § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) stated that while en route to the 48th Precinct stationhouse, Sergeant Bonilla and Police Officer LoBianco were having a conversation with one another (Board Review 15). § 87(2)(b) overheard Sergeant Bonilla state out loud “stupid bitch.” Sergeant Bonilla looked at § 87(2)(b) through the rearview mirror and stated that he was talking about her. § 87(2)(b) asked Sergeant Bonilla what he was talking about. He responded that he was talking about her and reiterated that she was a “stupid bitch.”

Sergeant Bonilla stated that he did not have a conversation with Police Officer LoBianco while inside the police vehicle (Board Review 24). He denied speaking to § 87(2)(b) while in the vehicle and denied calling § 87(2)(b) a “stupid bitch.”

Police Officer LoBianco stated that § 87(2)(b) was quiet in the police vehicle while being transported to the stationhouse and did not have a conversation with the officers (Board Review 18). § 87(2)(g).

§ 87(2)(g)

It is therefore recommended that **Allegation G** be closed as **unsubstantiated**.

Squad: 6

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date